

CV-24-008369 CHRISTIANSEN, JOSEPH vs SAVE MART SUPERMARKETS LLC – Defendant Save Mart Supermarkets LLC’s Motion to Quash Plaintiff’s Deposition of Person Most Qualified from Save Mart Supermarkets LLC and Request for Production of Documents at Deposition – GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: Civ. Proc. Code § 430.10 (d) enables a party to object by demurrer or answer to a pleading on the ground that there is a defect or misjoinder of parties. Save Mart Supermarkets LLC complied with this provision by objecting in both of their Answers. Barnes v. Rockhold (1958) 160 Cal.App.2d; Wolff v. Hoaglund (1970 11 Cal.App.3d 227). Plaintiff has subsequently failed to appropriately amend his pleadings in spite of agreeing to do so and despite the court ordering said amendment. In view of Plaintiff’s failure and or refusal to amend his Complaint, the court finds that Defendant Save Mart Companies is not a proper party to this action. While Plaintiff’s PMQ Notice was directed at the proper party, Save Mart Supermarkets LLC, since Defendant Save Mart Supermarkets LLC is not a proper party to this action, the PMQ Notice at issue is improper, and Defendants should have been issued a deposition subpoena. (Unzipped Apparel, LLC v. Bader, (2007)156 Cal. App. 4th 123; Terry v. SLICO, (2009)175 Cal. App. 4th 352). Accordingly, Defendant’s Motion is granted. Plaintiff shall amend his First Amended Complaint within seven (7) days of the date of service of this order to reflect Save Mart Supermarket’s correct nomenclature.

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In view of Plaintiff’s failure and or refusal to amend his Complaint, the court finds that Defendant Save Mart Companies is not a proper party to this action. While Plaintiff’s PMQ Notice was directed at the proper party, Save Mart Supermarkets LLC, since Defendant Save Mart Supermarkets LLC is not a proper party to this action, the PMQ Notice at issue is improper, and Defendants should have been issued a deposition subpoena. (Unzipped Apparel, LLC v. Bader, (2007)156 Cal. App. 4th 123; Terry v. SLICO, (2009)175 Cal. App. 4th 352).

Accordingly, Defendant’s Motion is granted.

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